



ARIZONA HOUSE OF REPRESENTATIVES FLOOR AMENDMENT EXPLANATION

57th Legislature, 2nd Regular Session

Majority Research Staff

[HB 2123](#): bullion depository; establishment

FINK FLOOR AMENDMENT

1. Stipulates that the State Treasurer must implement and discharge the duties for the depository's administration in a manner consistent with a prudent investor.
2. Redefines *transactional gold or silver*.
3. Defines additional terms.
4. Makes technical, clarifying and conforming changes.

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FINK FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.B. 2123
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

~~[GREEN STRIKEOUT IN BRACKETS]~~ indicates new text removed from statute or previously enacted session law.

~~[Green strikeout in brackets]~~ indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

~~<<Green strikeout in carets>>~~ indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Title 6, Arizona Revised Statutes, is amended by adding
3 chapter 18, to read:

4 CHAPTER 18

5 ARIZONA BULLION DEPOSITORY

6 ARTICLE 1. GENERAL PROVISIONS

7 6-1801. Definitions

8 IN THIS CHAPTER, UNLESS THE CONTEXT OTHERWISE REQUIRES:

9 [1. "ACCOUNT HOLDER" MEANS A PERSON WITH A SINGLE ACCOUNT OR JOINT
10 ACCOUNT IN A BULLION DEPOSITORY.

11 2. "ALLOCATED BASIS":

12 (a) MEANS BULLION THAT:

13 (i) IS SPECIFICALLY IDENTIFIED.

14 (ii) IS OR MAY BE SEGREGATED.

15 (iii) IS HELD FOR THE SOLE BENEFIT OF AN ACCOUNT HOLDER.

16 (b) DOES NOT CONSTITUTE A GENERAL ASSET OR LIABILITY OF THE
17 DEPOSITORY OR ANY PERSON OTHER THAN THE ACCOUNT HOLDER.]

18 [~~1.~~ [3.] "BULLION":

19 (a) MEANS REFINED PRECIOUS GOLD METAL AND SILVER METAL THAT IS:

20 (i) IN ANY SHAPE OR FORM.

21 (ii) VALUED PRIMARILY BASED ON THE METAL CONTENT OF THE GOLD OR
22 SILVER AND NOT ON THE FORM OR FUNCTION OF THE GOLD OR SILVER.

23 (b) INCLUDES GOLD COIN AND SILVER COIN. FOR THE PURPOSES OF THIS
24 SUBDIVISION:

25 (i) "GOLD COIN" MEANS GOLD METAL THAT IS IN THE SHAPE OF A BAR OR
26 OTHER PHYSICAL FORM AND THAT IS CERTIFIED AT LEAST 99.5 PERCENT PURE GOLD
27 METAL.

1 (ii) "SILVER COIN" MEANS SILVER METAL THAT IS IN THE SHAPE OF A BAR
2 OR OTHER PHYSICAL FORM AND THAT IS CERTIFIED AT LEAST 99.9 PERCENT PURE
3 SILVER METAL.

4 ~~[2.]~~ [4.] "DEPOSITORY" MEANS THE ARIZONA BULLION DEPOSITORY
5 ESTABLISHED BY SECTION 6-1802.

6 ~~[3.]~~ [5.] "ELECTRONIC PAYMENT SYSTEM":

7 (a) MEANS AN ELECTRONIC PLATFORM OR PAYMENT SYSTEM THAT USES GOLD
8 OR SILVER SPECIE AS THE BASIS FOR TRANSACTIONS AND THAT DOES ALL OF THE
9 FOLLOWING:

10 (i) USES BULLION HELD IN A DEPOSITORY FOR ELECTRONIC TRANSACTIONS.

11 (ii) ALLOWS FOR THE REDEMPTION OF BULLION BY SYSTEM PARTICIPANTS.

12 (iii) ENABLES ACCOUNT HOLDERS TO MAKE PAYMENTS TO PARTICIPATING
13 VENDORS.

14 (iv) IS AUTHORIZED AND APPROVED BY THE STATE TREASURER TO PROVIDE
15 ACCOUNTS THAT HOLD BULLION AND THAT ALLOW USERS TO BUY, SELL, SAVE OR
16 SPEND BULLION AS A FORM OF LEGAL TENDER.

17 (b) INCLUDES TRANSACTIONAL GOLD OR SILVER. FOR THE PURPOSES OF
18 THIS SUBDIVISION, "TRANSACTIONAL GOLD OR SILVER" MEANS ~~[REPRESENTATION, IN
19 THE EXACT UNITS OF METAL IN FRACTIONAL TROY OUNCES OF GRAMS OF BULLION,
20 THAT:~~

21 ~~(i) MAY BE TRANSFERRED THROUGH ELECTRONIC OR WRITTEN INSTRUCTION BY
22 THE OWNER.~~

23 ~~(ii) MAY BE USED TO MAKE OR RECEIVE PAYMENTS OR TO TRANSFER VALUE
24 WITHIN THIS STATE OR BETWEEN PARTIES THAT CONSENT TO ITS USE.~~

25 ~~(iii) IS FULLY BACKED BY SPECIE HELD IN A DEPOSITORY AND REDEEMABLE
26 ON DEMAND BY THE HOLDER IN THE UNDERLYING BULLION OR SPECIE.] [A TRANSFER
27 OF OWNERSHIP OF PHYSICAL BULLION IN EXACT UNITS OF METAL IN FRACTIONAL
28 TROY OUNCES OR GRAMS THAT:~~

29 (i) MAY BE TRANSFERRED THROUGH ELECTRONIC OR WRITTEN INSTRUCTION BY
30 THE OWNER OF THE BULLION.

31 (ii) MAY BE USED TO MAKE OR RECEIVE PAYMENTS OR TO TRANSFER VALUE
32 BETWEEN PERSONS THAT CONSENT TO ITS USE IN THIS STATE.

33 (iii) IS HELD IN A DEPOSITORY ON AN ALLOCATED BASIS, INCLUDING
34 THROUGH ANY POOLED BULLION HOLDING, WITH EACH ACCOUNT HOLDER THAT
35 POSSESSES AN OWNERSHIP INTEREST IN THE UNDERLYING BULLION.

36 (iv) IS FULLY REDEEMABLE AS PHYSICAL BULLION ON DEMAND BY THE OWNER
37 OF THE BULLION.]

38 ~~[4.]~~ [6.] "LEGAL TENDER" MEANS A MEDIUM OF EXCHANGE, INCLUDING
39 SPECIE, THAT IS RECOGNIZED BY THIS STATE FOR THE PAYMENT OF DEBTS, TAXES,
40 FEES AND OTHER OBLIGATIONS.

41 ~~[5.]~~ [7.] "SOCIAL CREDIT SCORING SYSTEM" MEANS A SYSTEM OF
42 RECORDKEEPING, DATA COLLECTION OR SCORING THAT EVALUATES, MONITORS OR
43 RANKS AN INDIVIDUAL'S OR ENTITY'S BEHAVIOR, BELIEFS, ASSOCIATIONS OR
44 COMPLIANCE WITH GOVERNMENT OR CORPORATE STANDARDS AND THAT CONDITIONS
45 ACCESS TO SERVICES, BENEFITS OR OPPORTUNITIES BASED ON THAT EVALUATION.

46 ~~[6.]~~ [8.] "SPECIE" MEANS COIN OR BULLION OF GOLD OR SILVER THAT
47 HAS INTRINSIC VALUE AND IS USED OR INTENDED FOR USE AS CURRENCY.

1 6-1802. Arizona bullion depository; administration;
2 electronic payment system; annual report

3 A. THE ARIZONA BULLION DEPOSITORY IS ESTABLISHED. THE STATE
4 TREASURER SHALL ADMINISTER THE DEPOSITORY. THE DEPOSITORY SERVES AS THE
5 CUSTODIAN, GUARDIAN AND ADMINISTRATOR OF BULLION AND SPECIE THAT MAY BE
6 TRANSFERRED TO OR OTHERWISE ACQUIRED BY THIS STATE OR RESIDENTS OF THIS
7 STATE. THE DEPOSITORY SHALL PROVIDE A SECURE LOCATION FOR STORING
8 BULLION. ~~[RESIDENTS OF THIS STATE] [AN ACCOUNT HOLDER]~~ MAY USE THE
9 DEPOSITORY TO DEPOSIT BULLION FOR ELECTRONIC USE.

10 B. THE STATE TREASURER MAY CONTRACT WITH A THIRD PARTY TO
11 ADMINISTER THE DAILY OPERATIONS OF THE DEPOSITORY ~~[AND IMPLEMENT THE~~
12 ~~DEPOSITORY SECURITY, STORAGE, TRANSACTIONAL AND ADMINISTRATIVE PROCEDURES~~
13 ~~IN ACCORDANCE WITH THIS CHAPTER AND RULES ADOPTED PURSUANT TO THIS~~
14 ~~CHAPTER].~~

15 C. THE STATE TREASURER SHALL CONTRACT WITH A THIRD-PARTY VENDOR IN
16 THIS STATE TO AUTHORIZE AND APPROVE ONE OR MORE ELECTRONIC PAYMENT
17 SYSTEMS. THE THIRD-PARTY VENDOR MUST COMPLY WITH ALL STATE AND FEDERAL
18 FINANCIAL LAWS. THE INFORMATION OF RESIDENTS OF THIS STATE WHO USE THE
19 ELECTRONIC PAYMENT SYSTEM MAY NOT BE USED IN ANY SOCIAL CREDIT SCORING
20 SYSTEM.

21 D. FOR THE PURPOSES OF SUBSECTION B AND C OF THIS SECTION, THE
22 THIRD PARTY SHALL PROVIDE VAULT FACILITIES WITHIN THE UNITED STATES FOR
23 THE STORAGE OF BULLION THAT:

24 1. COMPLIES WITH THE REQUIREMENTS PRESCRIBED BY THE LONDON BULLION
25 MARKET ASSOCIATION OR AN EQUIVALENT BEST PRACTICES GUIDELINES.

26 2. PROVIDES ACCOUNTS THAT DO BOTH OF THE FOLLOWING:

27 (a) HOLD BULLION.

28 (b) ALLOW ACCOUNT HOLDERS TO BUY, SELL, SAVE OR SPEND BULLION.

29 E. THE DEPOSITORY SHALL ENSURE THAT EACH DEPOSIT MADE IN THE
30 DEPOSITORY IS INSURED UNDER AN ALL-RISK INSURANCE POLICY THAT IS ISSUED BY
31 A NONGOVERNMENTAL OPERATED INSURER FOR ONE HUNDRED PERCENT OF THE FULL
32 REPLACEMENT VALUE OF THE DEPOSIT.

33 F. ON OR BEFORE JUNE 30 OF EACH YEAR, THE STATE TREASURER SHALL
34 SUBMIT A REPORT TO THE GOVERNOR, THE PRESIDENT OF THE SENATE AND THE
35 SPEAKER OF THE HOUSE OF REPRESENTATIVES THAT INCLUDES ALL OF THE
36 FOLLOWING:

37 1. THE STATUS AND OPERATIONS OF THE DEPOSITORY.

38 2. THE IMPLEMENTATION AND USAGE OF THE ELECTRONIC PAYMENT SYSTEM.

39 3. THE ECONOMIC IMPACT OF RECOGNIZING GOLD AND SILVER AS LEGAL
40 TENDER.

41 6-1803. Standard; prudent investor

42 THE STATE TREASURER ~~[MAY ADOPT RULES AS NECESSARY TO IMPLEMENT THIS~~
43 ~~CHAPTER. THE RULES MUST:~~

44 1. ~~ENSURE THE SECURITY OF THE SPECIE, BULLION, TRANSACTIONAL~~
45 ~~CURRENCY, TRANSACTIONS AND RELATED DATA.~~

46 2. ~~PREVENT FRAUD.~~

1 ~~3. PREVENT ANY RELEASE OF DEPOSITORY ACCOUNT OR DEPOSITORY ACCOUNT~~
2 ~~HOLDER RELATED DATA SUBJECT TO ORDER OF A COURT WITH PROPER JURISDICTION.~~
3 ~~4. ESTABLISH THE FEES NECESSARY TO IMPLEMENT THIS CHAPTER.]~~
4 ~~[SHALL IMPLEMENT AND DISCHARGE THE STATE TREASURER'S DUTIES UNDER THIS~~
5 ~~CHAPTER IN A MANNER CONSISTENT WITH THAT OF A PRUDENT INVESTOR.]~~
6 6-1804. Legal tender; gold and silver specie
7 A. GOLD AND SILVER SPECIE ARE RECOGNIZED AS A LEGAL TENDER IN THIS
8 STATE AND MAY BE USED FOR THE PAYMENT OF EITHER OF THE FOLLOWING:
9 1. IF MUTUALLY AGREED ON, DEBTS BETWEEN PRIVATE PARTIES.
10 2. IF THIS STATE OR A POLITICAL SUBDIVISION OF THIS STATE AGREES TO
11 ACCEPT SPECIE AS A FORM OF PAYMENT OF TAXES, FEES OR OTHER OBLIGATIONS
12 OWED TO THIS STATE OR A POLITICAL SUBDIVISION OF THIS STATE.
13 B. THE PURCHASE, SALE OR EXCHANGE OF ANY TYPE OF SPECIE OR BULLION
14 DOES NOT CREATE ANY TAX LIABILITY. EXCHANGING ONE FORM OF LEGAL TENDER
15 FOR ANOTHER FORM OF LEGAL TENDER DOES NOT CREATE TAX LIABILITY.
16 C. A PERSON OR ENTITY IN THIS STATE MAY NOT BE COMPELLED TO ACCEPT
17 GOLD OR SILVER SPECIE AS A FORM OF PAYMENT EXCEPT AS PROVIDED IN THIS
18 SECTION.

19 Enroll and engross to conform
20 Amend title to conform

LISA FINK

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